NCAT
NSW Civil & Administrative Tribunal

Strata schemes

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NCAT can hear and decide cases about strata schemes disputes.

> Strata schemes cases are managed through NCAT's **Consumer and Commercial Division**.

Check if mediation is required

Mediation is compulsory for most strata schemes disputes. If you apply to NCAT and do not attach evidence of attempted mediation, we may not accept your application.

Check the **Strata schemes fact sheet** (PDF , 531.7 KB) to find out if you need to mediate your strata schemes dispute before applying to NCAT.

NSW Fair Trading provides a free mediation service. For more information contact Fair Trading on 13 32 20 or visit **www.fairtrading.nsw gov.au**.

How to apply

Download and complete the application form. Lodge your application at any **NCAT Registry** or Service NSW service centre.

- **Strata and community schemes application form** (PDF, 229.0 KB)

Before applying, check you have the correct service address for the owners corporation. Read the **Strata schemes fact sheet** (PDF, 232.3 KB) for more information about applying to NCAT.

Interim orders

You can apply to NCAT for an interim order in addition to your strata schemes application:

- **Strata and community schemes interim application form** (PDF, 229.8 KB)

Interim orders can stop the actions of a party or to preserve the current state until NCAT decides the strata schemes application. NCAT will only make an interim order if urgent considerations warrant the making of an order.

An interim application must be lodged with a related substantive application. The substantive application can be already lodged or lodged at the same time as the interim application.

Fees

Fees are payable for strata schemes applications and strata schemes interim applications. View our **fees and charges**.

A copy of the application is sent to all lot owners

NCAT sends a copy of the application to the parties and to the relevant owners corporation. The owners corporation is required to give a copy of the application to all lot owners. Learn more about **what happens to information or evidence you give to NCAT**.

What happens next?

After applying to NCAT the matter is listed for conciliation and hearing or a directions hearing.

Show All

Receive the notice of hearing

Conciliation and hearing

Directions hearing

Evidence and supporting materials

Can someone represent me?

For information and assistance

Read the **hearing preparation checklist** to prepare for your hearing.

Legislation

The following legislation applies to strata schemes disputes.

- **Strata Schemes Management Act 2015**

Organisations that can help

NCAT cannot provide legal advice. Find out **how we can and cannot assist**. Below are some organisations that can provide help or advice about strata schemes disputes.

- **NSW Fair Trading**
- **LawAccess NSW**

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We acknowledge the traditional owners and custodians of the land on which we work and we pay respect to the Elders, past, present and future.